



CHAPTER clxxxiv.

An Act to confirm certain Provisional Orders of the Local Government Board relating to the Hursley Union and the Parish of Saint Mary Magdalen Bermondsey. A.D. 1900.

[30th July 1900.]

WHEREAS the Local Government Board have made the Provisional Order set forth in the First Schedule hereto under the provisions of the Poor Law Act 1889 :

52 & 53 Vict.
c. 56.

And whereas the Local Government Board have made the Provisional Order set forth in the Second Schedule hereto under the provisions of the Poor Law Amendment Act 1867 and the Poor Law Act 1879 :

30 & 31 Vict.
c. 106.
42 & 43 Vict.
c. 54.

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders set out in the schedules hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in
schedules
confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (Poor Law) Act 1900. Short title.

A.D. 1900.

SCHEDULES.

FIRST SCHEDULE.

*Hursley
Union
Order.*

HURSLEY UNION.

*Provisional Order made in pursuance of sub-section (3) of Section 2
of the Poor Law Act 1889.*

To the Guardians of the Poor of the Hursley Union ; —

And to all others whom it may concern.

52 & 53 Vict.
c. 56.

WHEREAS by Section 2 of the Poor Law Act 1889 it is (inter alia) enacted as follows :—

- “ (1.) The guardians of any union may with the sanction of the Local Government Board borrow for the purpose of raising the expenses incurred or proposed to be incurred for any permanent work or object or any other thing the costs of which ought in the opinion of the Local Government Board to be spread over a term of years.
- “ (2.) A loan shall not be of such amount as exceeds or will make the total debt of the guardians under the Acts relating to the relief of the poor exceed one fourth of the total annual rateable value of the union.
- “ (3.) The Local Government Board may by Provisional Order extend the said maximum to double the amount above authorised.”

And whereas the guardians of the poor of the Hursley Union (herein-after referred to as “the guardians”) propose to borrow money which with their existing debt will make their total debt under the Poor Law Acts exceed the maximum mentioned in sub-section (2) of the said section and the guardians have applied to the Local Government Board for a Provisional Order to extend the said maximum to double the amount authorised by the said sub-section (2) :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 2 of the Poor Law Act 1889 and by any other Statutes in that behalf do hereby order as follows :—

Art. I. The total debt which the guardians may at any time have under the Acts relating to the relief of the poor shall be extended to double the amount authorised by sub-section (2) of Section 2 of the Poor Law Act 1889.

Art. II. This Order may be cited as the Hursley Union Order 1900.

Given under the Seal of Office of the Local Government Board this
Twenty-first day of April One thousand nine hundred.

(I.S.)

HENRY CHAPLIN President.
S. B. PROVIS Secretary.

SECOND SCHEDULE.

A.D. 1900.

PARISH OF SAINT MARY MAGDALEN BERMONDSEY.

*Saint Mary
Magdalen
Bermondsey
Order.*

*Provisional Order for partially repealing and altering
a Local Act.*

To the Governors and Directors of the Poor of the Parish of Saint Mary
Magdalen Bermondsey ; —

And to all others whom it may concern.

WHEREAS the unrepealed provisions of a Local Act (herein-after referred to as "the Local Act") passed in the thirty-first year of the reign of His late Majesty King George the Third intituled "An Act for amending and enlarging the Powers of and rendering more effectual an Act made in the Thirty-first Year of the Reign of His late Majesty King George the Second intituled 'An Act for ascertaining and collecting the Poor's Rates and for better regulating the Poor in the Parish of Saint Mary Magdalen Bermondsey 'in the County of Surrey' and for other the purposes therein mentioned" as altered by another Local Act which does not affect the subject-matter of this Order are in force in the Parish of Saint Mary Magdalen Bermondsey (herein-after referred to as "the Parish") ;

31 Geo. III
c. xix.

And whereas by Section 20 of the Local Act it was provided that the legal estates in fee-simple of and in all messuages lands tenements and hereditaments theretofore granted devised or given in trust for the use relief or benefit of the Poor of the Parish only and not jointly with any other Parish should from and after the passing of that Act be divested out of the respective persons in whom the same then were or should at the passing of that Act be vested and should be and were thereby transferred to and vested in the Governors and Directors of the Poor of the Parish (herein-after referred to as "the Governors and Directors") for the time being for ever upon the same Trusts as the same premises were or might be subject to in the hands of such person or persons so intended to be divested of such legal estates as aforesaid ;

And whereas by Section 21 of the Local Act it was provided that it should and might be lawful for the Governors and Directors to demise or lease all or any the messuages lands tenements and hereditaments thereby vested in the Governors and Directors or thereafter to be purchased by them (except as mentioned in that section) upon the terms and conditions specified in that section ;

And whereas by Section 30 of the Local Act it was provided that all penalties gifts donations benefactions and sums of money whatsoever which were then payable or which should thereafter become payable for or to the use of the Poor of the Parish (not being directed or liable to be applied for the support of any private or particular Charity or Poor or by the donation particularly appropriated and not being sacramental money) and which gifts donations and benefactions are herein-after referred to as "the Charity Moneys" should from time to time be paid into the hands of the Treasurer or Treasurers to the Governors and

[Ch. clxxxiv.] *Local Government Board's* [63 & 64 VICT.]
Provisional Orders Confirmation (Poor Law) Act, 1900.

A.D. 1900. Directors and should be applied in aid of the rates or assessments for the relief of the Poor of the Parish ;

*Saint Mary
Magdalen
Bermondsey
Order.*

And whereas applications have been duly made to the Local Government Board to issue a Provisional Order to partially repeal or alter the Local Act as herein-after mentioned :

30 & 31 Vict.
c. 106.

42 & 43 Vict.
c. 54.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 2 of the Poor Law Amendment Act 1867 as extended by Section 9 of the Poor Law Act 1879 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect viz.,—

Art. I. The Local Act shall be partially repealed and altered so as to provide that from and after the date when a scheme established by the Charity Commissioners with respect to the Charity Moneys in pursuance of the provisions of the Charitable Trusts Acts 1853 to 1894 shall have come into operation :—

(1.) Section 20 shall be altered by the substitution of the words “the Official Trustee of Charity Lands” for the words “the said Governors and Directors for the time being.”

(2.) Section 21 shall so far as it relates to any messuages lands tenements and hereditaments referred to in Section 20 be repealed.

(3.) Section 30 shall so far as regards the Charity Moneys take effect as if the words “in accordance with a scheme established for that purpose by the “ Charity Commissioners in pursuance of the provisions of the Charitable Trusts “ Acts 1853 to 1894 ” were substituted in the said section for the words “in aid of the Rates or Assessments for the Relief of the Poor of the said Parish.”

(4.) Any sums which may have been paid in respect of the Charity Moneys to the Treasurer or Treasurers to the Governors and Directors in pursuance of Section 30 and which at the date when the scheme established by the Charity Commissioners as aforesaid shall come into operation remain unapplied shall be applied in accordance with the provisions of the said section as hereby altered.

Art. II. This Order may be cited as the Saint Mary Magdalen Bermondsey Order 1900.

Given under the Seal of Office of the Local Government Board this
Fourteenth day of May One thousand nine hundred.

(L.S.)

HENRY CHAPLIN President.
S. B. PROVIS Secretary.

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